

that is, "subject to the approbation of the Court," and then apply by petition or summons at chambers for the Court's sanction, and the practice is to direct an inquiry whether the proposed purchase is fit and proper, and if so, whether a *good title* can be made. "As long," said Sir G. Jessel, "as an estate is under the administration of the Court, the Court does not allow a purchase or mortgage or any other investment to be made, without seeing to its safety. The Court has to protect the property for all claimants, and a reference is made to ascertain the propriety of the investment, that is to say, its propriety in all respects" (a). And the practice is not to inquire whether a good title can be made *subject to the conditions*, but whether a good title can be made *absolutely*, and if in the course of investigation an objection to the title arises, it is brought under the attention of the judge, who then exercises his discretion (the whole title being before him), whether the objection can be waived with reasonable safety (b). "Much too great laxity," observed V. C. Wood, "has been gaining ground amongst the advisers of those who have to manage trust property, and there is a disposition to rest satisfied with imperfect titles. I cannot approve of such a practice, and cannot permit trustees to take a defective title, even though it may be in accordance with the contract" (c).

10. How purchase will affect the interest of cestuis que trust. — Trustees for purchase have to look not only [*502] to the adequacy of *the *value* and the goodness of the *title*, but also to the effect which the purchase will have upon the *relative interests* of the *cestuis que trust*.

Purchase of houses. — Thus where the property is directed by the settlement to be held in trust for a person for life with remainders over, a trustee might no doubt purchase an estate with a suitable *house* upon it, but (without saying that he could not legally do so) he ought not to purchase a house merely. This is a property of a

(a) *Bethell v. Abraham*, 17 L. R. Eq. 27.

(b) *Ex parte The Governors of Christ's Hospital*, 2 H. & M. 166.

(c) *Ex parte The Governors of Christ's Hospital*, 2 H. & M. 168.